MAIRESI KONDOWE
Versus
YAMBUKAI FINANCE (PRIVATE) LIMITED
And
KAMBUZI NINE MINE (PRIVATE) LIMITED
And
TYSON MUGWIRA
And
TRUST MUGWIRA
And
TAWANDA MUGWIRA
And
SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
V. NDLOVU J
HARARE; 26 February 2026, 06 March 2026

Urgent Chamber Application

V. L. Zvobgo, for the Applicant
N. Z. Masuku and G.M. Nyangwa, for the Respondent
No appearance for the 2nd – 7th Respondent

V. NDLOVU J: This is an urgent application for a stay of execution concerning Stand 882, Gatooma Township, which was jointly acquired by the applicant and her former spouse, Joel Madzivanyika, in 2006 and registered in both their names through a deed of cession.

FACTUAL BACKGROUND

The Applicant, Mairesi Kondowe, seeks an urgent stay of execution of her matrimonial home, where she resides with her three children. She claims to have jointly purchased the property with Joel Madzivanyika in 2006, but it was fraudulently registered in his name only. The property was now scheduled for auction on 27 February 2026 pursuant to execution proceedings by the 1st Respondent, Yambukai Finance (Private) Limited. The Respondents cited include Kambuzi Nine Mine (Pvt) Ltd, Tyson Mugwira, Trust Mugwira, Tawanda Mugwira, the Sheriff of the High Court, and Graham Douglas Real Estate. Notably, only the 1st Respondent has opposed the application.

She contends that the scheduled auction of the property on 27 February 2026, pursuant to execution proceedings instituted by the 1st Respondent, poses an imminent threat of homelessness and irreparable harm to her family. The Applicant maintains that her proprietary rights have been compromised through fraudulent conduct by the 1st and 2nd Respondents, who, despite being aware of her joint ownership as evidenced by documents such as a rates clearance certificate bearing both names, proceeded to deal with the property as though it belonged solely to Madzivanyika.

She emphasizes that she has actively pursued remedies since 2021, including lodging a police report against Madzivanyika and filing applications to halt the transfer and sale of the property. Her efforts culminated in a rescission application under case number HCHC105/26 and a declaratory order under case number HCH705/26, both of which remain pending before this Court. She further asserts that she was not cited in the proceedings that led to the default judgment authorising execution, and only became aware of the auction process on 4 February 2026.

The 1st Respondent opposes the application and raises several preliminary objections. It argues that the Applicant's claimed urgency is self-created, citing a summons allegedly served at her address on 19 August 2025, and a Notice of Attachment served on 1 December 2025. The Respondent contends that the Applicant failed to act timeously and has misrepresented material facts regarding her knowledge of the proceedings, thereby abusing the court process. It further submits that the property was lawfully transferred pursuant to a Magistrates' Court order, rendering the present application moot.

On the question of *locus standi*, the Respondent maintains that the Applicant's claims lie primarily against Madzivanyika, who allegedly perpetrated the fraud, and that he ought to have been joined to these proceedings. It argues that without his inclusion, the Applicant's case is defective and incapable of sustaining the relief sought. The Respondent also emphasizes that the Applicant has alternative remedies available, including pursuing her personal claims against Madzivanyika, who is currently facing criminal charges arising from the transaction. On these bases, the Respondent urges dismissal of the application with costs, asserting that it is both unmeritorious and an abuse of process.

In her answering affidavit, the Applicant denies the preliminary objections raised by the 1st Respondent and maintains that the matter is urgent, as her proprietary rights have been compromised through fraudulent transfer, sale, and attachment of the property, which continues to threaten her residence and family shelter. She disputes the Respondent's claim of proper service, arguing that summons were never personally served on her but merely affixed to a gate, and that the alleged notice of attachment was not delivered to her. She emphasizes that she has consistently defended her rights since 2021, including lodging police reports and securing an interdict against disposal of the property, which was nonetheless ignored.

The Applicant denies allegations of misrepresentation, asserting that her account is truthful and *bona fide*. She insists that she was fraudulently excluded from ownership despite holding a valid cession agreement, which confers enforceable contractual rights to occupation and eventual transfer. She stresses that her rights are legitimate, recognized by Kadoma City Council, and protected by prior court orders. She further argues that her occupation since 2006 and continuous development of the property entitle her to judicial protection.

She rejects the Respondent's contention that her husband, Joel Madzivanyika, ought to have been joined, noting that his involvement is the subject of separate proceedings. She contends that the 3rd Respondent knowingly purchased the property despite awareness of her rights and pending disputes, and therefore cannot evade responsibility. The Applicant reiterates that her application is strictly for a stay of execution, made in good faith to safeguard her family's shelter, and that granting relief will not prejudice the 1st Respondent but will allow the matter to be fully ventilated on the merits.

Finally, she highlights that she has already filed a rescission application and a declaratory order seeking cancellation of the deed of transfer relied upon by the 1st Respondent. She submits that the outcome of those proceedings may fundamentally alter the present matter, reinforcing the need for interim relief to preserve her rights pending final determination.

RELIEF SOUGHT

The Applicant prays for the following interim relief:

1. The 1st to 7th Respondents are hereby ordered to stay execution of the judgement granted on the 15th of September 2025 and stay the auction scheduled for the 2th of February 2026 of the immovable property known as a certain piece of land situate in the district of Gatooma being stand 882 Gatooma township of stand 823A Gatooma township measuring 3382 square metres held under deed number 538/2020 pending determination of the Application for Rescission, Application of Declaratory order and Consequential relief under case number HCHC105/26 and HCH705/26.

ISSUES FOR DETERMINATION

1. Whether the Applicant has satisfied the requirements for the granting of a temporary stay of execution pending the determination of her rescission and declaratory applications?

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APPLICATION OF THE LAW TO THE FACTS

1. **Whether the Applicant has satisfied the requirements for the granting of a temporary stay of execution pending the determination of her rescission and declaratory applications?**

In the matter of *Chingwena v SMM Holdings (Pvt) Ltd and The Administrator & Anor* HB 97/18 at p 3-4, the court articulated that the requirements for interim relief are well established: the Applicant must demonstrate a prima facie right, a well-grounded apprehension of irreparable harm, the absence of an adequate alternative remedy, and that the balance of convenience favours the granting of relief.

It is trite that the power to grant a stay of execution is a common law discretion inherent in the Court. This discretion is wide but guided by the principle that a stay should be granted where real and substantial justice requires it, or conversely, where injustice would otherwise result - see *Mungwambi v Ajanta Properties (Pvt) Ltd* HH 771/08 at p 2.

On the question of a *prima facie* right, the Applicant has placed before the Court evidence of joint purchase and a cession agreement, supported by municipal documentation. While she may not hold a registered title, her contractual rights are enforceable and recognised in law. The

pending rescission and declaratory applications further underscore that her claims are not frivolous but are matters properly before the Court for adjudication.

The Applicant disputes that she was properly served. The alleged affixing of a summons to a gate and the absence of personal details on the return of service cast doubt on the adequacy of service. The Court accepts that she may not have been duly notified, which strengthens her claim for rescission.

The imminent auction of the property, which serves as the Applicant's matrimonial home, constitutes irreparable harm if not stayed. The loss of a family home cannot be adequately compensated by damages. Urgency is not confined to the "day of reckoning" but arises where immediate judicial intervention is necessary to prevent prejudice. The Applicant's continuous efforts since 2021, including police reports and prior interdicts, demonstrate vigilance rather than negligence.

No adequate alternative remedy exists. If execution proceeds, rescission or declaratory relief may be rendered nugatory. The stay is therefore necessary to preserve the subject matter of litigation.

While the 1st Respondent argues that Madzivanyika ought to have been joined, the Applicant's rights are not extinguished merely because her co-purchaser acted fraudulently. Her claims are directed against those who now seek to execute against the property, and her interest in preserving her home is sufficient to ground standing.

On the balance of convenience, the prejudice to the Applicant and her children in losing their home far outweighs any inconvenience to the Respondent in delaying execution. The 1st Respondent retains the opportunity to pursue its remedies once the substantive applications are determined.

DISPOSITION

The Applicant has demonstrated a prima facie right, irreparable harm, and that the balance of convenience favours the granting of interim relief. The objections raised by the 1st Respondent do not displace the Applicant's entitlement to protection pending final determination of her substantive claims.

Accordingly, I make the following order.

ORDER

1. The 1st to 7th Respondents are hereby ordered to stay execution of the judgement granted on the 15th of September 2025 and stay the auction scheduled for the 27th of February 2026 of the immovable property known as a certain piece of land situate in the district of Gatooma being stand 882 Gatooma township of stand 823A Gatooma township measuring 3382 square metres held under deed number 538/2020 pending determination of the Application for Rescission, Application of Declaratory order and Consequential relief under case number HCHC105/26 and HCH705/26.
2. Each party to bear its costs.

V NDLOVU J:

Valentine Lee Attorneys, Applicant's legal practitioners
Mawere Sibanda Commercial Lawyers, 1st Respondent's legal practitioners